



ICC

STUDY GUIDE

**The Prosecutor v.
Jean-Pierre Bemba
Gombo**



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1. LETTER FROM THE PRESIDENCY

Dear Judges, Advocates, and Prosecutors of the International Criminal Court (ICC),

We, the presidency of ICC, would like to warmly welcome you to one of the most extraordinary committees of Jasienica Model United Nations (JASMUN) 2026!

Having been said, it is a committee which doesn't follow the conventional Rules of Procedure (RoP) of Model United Nations (MUN) conferences, the usual pre-conference preparation. Therefore, it is expected that you may have a rougher experience when preparing for this committee.

In order to lift the slight pressure of preparation, this study guide has been purposely crafted with the following purposes: serving as a brief introduction to the ICC and a starting point of your research. Thorough comprehension of the document is essential, however, it is expected that you do your own research as well as having a general understanding of the ICC RoP and the Rome Statute on top of this given document to guarantee yourself the authentic experience of this committee.

It may seem overwhelming at first, so please do not panic as we are at your disposal at all times and are here to guide you. As former Judges and Advocates, we understand how complex the unfamiliar contents and terms can be, at times even stressful. If you have any doubts or need further assistance before, during, or after the conference, please do not hesitate to contact any of us!

We wish you all the best and we cannot wait to see you all in September!

Your Presidency,
Zofia, Yeonhwa, and Karina

2. CONTEXTUAL INTRODUCTION TO THE INTERNATIONAL CRIMINAL COURT

The International Criminal Court (ICC) is the world's first permanent international criminal court which performs trials - when warranted - on the investigated case. Located in The Hague, Netherlands, the scrutinised defendants are individuals charged with acute crimes which may concern the international community. Its jurisdiction is granted by the Rome Statute (the Statute), the governing international treaty, over 4 main crimes: genocide, war crimes, crimes against humanity and crime of aggression. It is a court of last-resort where it complements national courts of 125 States (including Central African Republic) which accepted the Statute; however, ICC's legal process may slightly differ from that in other national jurisdictions. The example procedure of investigation and case is as follows (in chronological order): Preliminary examinations, Investigations, Pre-Trial stage, Trial stage, Appeals stage, Enforcement of sentence. Readers can understand that in this particular MUN conference, the Pre-Trial stage and Trial stage from the listed procedure model is to be simulated by the ICC delegates.

There are a few features of the ICC which the delegates should be aware of which is to be addressed below. The lack of law enforcement as a non-UN organisation and the extent in which it possesses jurisdiction on cases depending on the country of origin of the accused, the country where the crime occurred and the acceptance of the jurisdiction. This is to enlighten delegates on the works of the ICC as a contextual knowledge, however, some parts may be irrelevant to the case as Bemba Gombo's country of origin and the country that he was accused of committing his crime was part of the States Parties of the Statute.

It is important to acknowledge that ICC is a judicial institution and lacks its own police force and enforcement body. As a result, its dependency on countries for support is heightened on these particular stages of the procedure: making arrests and transferring arrested persons to the ICC detention centre in The Hague, freezing suspects' assets and enforcing sentences.

An additional fact to keep in mind is that it is not part of the UN. However, the Court has a cooperation agreement with the UN hence the interrelationship between two multilateral institutions cannot be ignored. Under their agreement, although the situation may not be within the Court's jurisdiction, for instance, when the country of origin of the accused is not within the State Parties of the Statute, it may be subject to referral by the United Nations Security Council (UNSC) granting jurisdiction. A real-life example of this is Darfur (Sudan) and Libya. Both countries are not a part of the State Parties of ICC, but the Court still had the jurisdiction due to the referral by the UNSC.

Delegates should note that the exercising of jurisdiction of the ICC is legally binding, only if it is regarding a State which became a Party to the Statute, or the State has accepted the jurisdiction of the Court under the Article 12 of the Statute: Preconditions to the exercise of jurisdiction. Due to the fact that the Court cooperates with both States Parties and non-States Parties, the same can be applied to non-States Parties, when they verify the exercising of the ICC's jurisdictions.

3. KEY WORDS

Command responsibility

A rule in international law, where a military commander or civilian leader can be put on trial for war crimes, genocide, or crimes against humanity done by their workers or soldiers, even if the leader did not order the crimes.

Effective command and control

The combination of human authority, clear communication, and reliable technology used to direct a group, manage resources, and reach a goal.

Subordinates

A person who has a less important position than you in an organization.

Rome Statute

The Rome Statute of the International Criminal Court represents the treaty that established the ICC. It was adopted at a diplomatic conference in Rome, Italy on 17 July 1998 and entered into force on 1 July 2002. It established four core international crimes: genocide, war crimes, crimes against humanity, and crimes of aggression.

War crimes

Atrocities or offences against persons or property, constituting violations of the laws or customs of war.

Crimes against humanity

Specific crimes committed in the context of a large-scale attack targeting civilians, regardless of their nationality.

Murder

The crime of unlawfully and unjustifiably killing a human being with malice.

Rape/sexual violence

Any unwanted behaviour of a sexual nature that you have not consented to. It can occur when a person is forced, tricked, intimidated or coerced into.

Pillaging

To steal something from a place or a person by using violence, especially during war.

Direct perpetration

The perpetrator acts on his or her own without relying on or using another person. He directly and personally executes the crime.

Co-perpetration

Legal concept where two or more individuals commit a crime jointly through a shared common plan.

Jurisdiction

The official power, right, or authority of a court, government, or legal body to make decisions, interpret laws, and manage cases within a specific area or over certain types of legal matters.

Admissibility

The fact of being considered satisfactory and acceptable in a law court (in this case, the ICC).

Deterrence

The ability to alter an actor's cost-benefit calculus so they decide against taking an undesired action.

Pre-Trial Chamber

A panel of judges in the International Criminal Court that checks whether there is enough evidence to move a case forward.

Trial Chamber

A judicial body in international criminal courts responsible for conducting first-instance trials, hearing evidence, and rendering verdicts.

Appeals Chamber

A specialized body within an international court or tribunal responsible for reviewing decisions made by lower courts or tribunals.

4. BACKGROUND OF THE SITUATION

Decision title: The Prosecutor v. Jean-Pierre Bemba Gombo

Court: International Criminal Court (Trial Chamber III), The Netherlands

Case number: ICC-01/05-01/08

Information about the accused:

Name: Jean-Pierre

Last name: Bemba Gombo

Date of birth: 4 November 1962

Nationality: Colognese

Warrant of arrest: 10 June 2008

The proceedings involving our defendant, Mr. Jean- Pierre Bemba Gombo, arise from the armed conflict in the Central African Republic (CAR) that took place between 2002 and 2003.

In 2001 François Bozizé, who served as Army Chief of staff began a rebellion against the President of the Central African Republic, Ange-Félix Patassé, leading to active conflict between the government and the rebel groups. As the rebellion drastically advanced towards CAR's capital, Bangui, Patassé requested assistance from foreign allies. Among those allies who responded was Mouvement de Libération du Congo (MLC), an armed movement from the neighbouring Democratic Republic of the Congo, led by Jean-Pierre Bemba. Beginning in October 2002, MLC troops fought alongside CAR's government forces against Bozizé's rebellion. The forces remained in the country until March 2003, when François Bozizé seized Bangui, and took control over the government.

During the conflict, civilians in affected areas were subjected to serious abuses and war crimes committed by Patassé's allied forces and rebel groups. Numerous reports emerged alleging that MLC soldiers committed widespread acts of rape, murder and large-scale pillaging against civilians in the Central African Republic. Sexual violence was documented on an extensive scale, with women and girls being the primary victims, while homes, shops, and other properties were allegedly looted during military operations. The consequences of the conflict in CAR resulted in displacement of civilians, heavy damage to properties and infrastructure, and many victims left without effective access to justice. Given the instability in the Central African Republic after Bozizé took power, and limited capacities of regional juridical institutions, domestic authorities faced significant problems in investigating and prosecuting those responsible for the alleged crimes, making the issue an international concern.

In December 2004, the government of CAR requested the International Criminal Court to investigate crimes committed during the rebellion between 2002 and 2003, detailing the MLC's involvement in military operations. Following the examination, in 2007 the Office of the Prosecutor opened a formal investigation, focusing on alleged war crimes and crimes against humanity carried out by various individuals during the hostilities, with particular attention focused on actions executed by the MLC forces during their deployment in support of President Patassé's government.

These allegations were brought under Article 28(a) of the Rome Statute. Jean-Pierre Bemba, as President and Commander-in-Chief of the Mouvement de Libération du Congo became the central focus of the investigation. Although the Prosecutor did not allege that Bemba personally participated in the commission of the crimes, it was argued that he exercised effective authority and control over the MLC troops operating in CAR and failed to take all necessary and reasonable measures to prevent or to punish crimes committed by his subordinates, which ultimately formed the basis of the proceeding before the International Criminal Court.

5. PROCEDURAL HISTORY / TIMELINE OF CONFLICT

- **December 1999:** The Central African Republic (CAR) signs the Rome Statute of the International Criminal Court (ICC).

Referral & Investigations (2004–2007):

- **December 2004:** The Government of CAR referred crimes under the Rome Statute to the ICC.
- **June 2005:** The Government of CAR provided the Prosecutor with documents and judicial proceedings in relation to crimes committed in its territory in 2002–2003.
- **May 2007:** The Prosecutor publicly announces the launch of his investigation.

Arrest & Pre-Trial Proceedings (2008–2009):

- **May 2008:** An arrest warrant was issued and Mr. Bemba was arrested in Belgium.
- **June 2008:** A new arrest warrant was issued after additional information was provided by the Prosecution.
- **July 2008:** Mr. Bemba surrendered to the Court and made his first appearance.
- **October 2008–March 2009:** The Prosecution filed charges against Mr. Bemba, including crimes against humanity and war crimes. After a confirmation of charges hearing, the Pre-Trial Chamber asked the Prosecution to consider amending the charges to include a different mode of criminal liability.

Amendment of Charges & Confirmation (2009):

- **March–June 2009:** The Prosecution amended the charges, presenting Mr. Bemba as a co-perpetrator or, alternatively, as a military commander responsible for crimes against humanity and war crimes.
- **June 2009:** The Pre-Trial Chamber confirmed charges against Mr. Bemba based on command responsibility.

Trial Preparations & Commencement (2009–2010):

- **September 2009–October 2010:** The Chamber was constituted, and the Prosecution filed amended documents and summaries of evidence. Defence objections were addressed, and the Prosecution filed the Corrected Revised Second Amended DCC.
- **November 2010:** The trial commenced with opening statements, and the Prosecution called its first witness.

Regulation 55 Notification & Further Proceedings (2012–2013):

- **September 2012–February 2013:** The Chamber notified the parties of the possibility of considering an alternate form of liability under Article 28(a)(i). The proceedings were temporarily suspended for the Defence to prepare its case.

Completion of Evidence Presentation & Closing Briefs (2013–2014):

- **April 2014–November 2014:** The presentation of evidence was declared closed. Closing briefs were filed by the Prosecution, Legal Representative, and Defence. The Prosecution and Defence made their closing oral statements.

The Trial Chamber heard a total of 77 witnesses and admitted 733 items of evidence. Throughout the proceedings, 1219 written decisions and 277 oral decisions/orders were issued.

Amendment of Charges & Confirmation (2009):

- **March–June 2009:** The Prosecution amended the charges, presenting Mr. Bemba as a co-perpetrator or, alternatively, as a military commander responsible for crimes against humanity and war crimes.

6. JURISDICTION & ADMISSIBILITY

Jurisdiction of the ICC:

The Pre-Trial and Trial Chambers affirmed that all jurisdictional criteria under the Rome Statute were met:

- **Territorial & Temporal Jurisdiction:** The crimes occurred on the territory of the Central African Republic, the State Party that referred the situation to the Court, between 26 October 2002 and 15 March 2003, post-dating the 1 July 2002 entry into force.
- **Personal Jurisdiction:** Jean-Pierre Bemba was subject to the court's authority for actions of forces under his effective command.
- **Subject-Matter Jurisdiction:** The acts involved core crimes under Articles 7 and 8 of the Rome Statute, specifically war crimes (murder, rape, pillaging) and crimes against humanity (murder, rape).

Admissibility Challenges:

The defense challenged the admissibility of the case under Article 17 of the Rome Statute, raising several arguments:

- **Complementarity:** The defense argued that national courts in CAR or the DRC should handle the case, and not the ICC.
- **Gravity:** The defense claimed the crimes lacked sufficient gravity to warrant ICC intervention, which the court disagreed with, citing the massive scale of the offenses, including widespread sexual violence used as a tool of conflict.
- **Abuse of Process:** Claims regarding unfairness or abuse of process were dismissed during preliminary challenges before proceeding to the merits.

7. ALLEGED CRIMES & CHARGES

Pre-Trial Chamber II concluded that there is sufficient evidence to establish substantial grounds to believe that Mr. Bemba is criminally responsible for having effectively acted as a military commander within the meaning of article 28(a) of the Rome Statute, for war crimes and crimes against humanity committed in the territory of the Central African Republic.

The confirmed charges against Mr. Jean Pierre Bemba Gombo are the following:

Crimes Against Humanity:

COUNT 1

Murder

(Within the meaning of article 7(1)(a) of the Statute)

COUNT 2

Rape

(Within the meaning of article 7(1)(g) of the Statute)

War Crimes:

COUNT 3

Murder

(Within the meaning of article 8(2)(c)(i) of the Statute)

COUNT 4

Rape

(Within the meaning of article 8(2)(e)(vi) of the Statute)

Please bear in mind that the charges may be expanded before the trial, if the Prosecution finds sufficient evidence that shall be presented to the Court supporting such additional charges and presents them in the memorial. Expansion of charges is not admissible after the proceedings have been opened.

8. MODE OF CRIMINAL RESPONSIBILITY

The primary mode of criminal responsibility analyzed during the trial was **command responsibility under Article 28(a) of the Rome Statute**. Rather than claiming that Bemba personally committed the murders, rapes, and acts of pillaging, the Prosecution argued that he was responsible, and thus should be charged, for crimes committed by his subordinates, members of the Movement for the Liberation of Congo (MLC).

Under **Article 28(a)**, a military commander may be held individually criminally responsible for crimes committed by forces under his or her effective command and control when the required legal conditions are met. In other words, the Prosecution must establish that the commander knew or, depending on the circumstances at the time, should have known that the forces were committing or were about to commit such crimes. It must also prove that the commander failed to take all necessary and reasonable measures within his or her power to prevent or repress their commission or to submit the matter to more competent authorities. In Bemba's case, the question of effective command and control was therefore crucial.

Mr. Bemba, at the time, had ultimate authority and control over the MLC's military operations, strategy, logistics, and discipline. He maintained direct communication with MLC commanders in the CAR and visited the region several times.

The central legal question was not simply whether Bemba personally witnessed these crimes, but whether he knew, or should have known based on the circumstances, that his forces were committing or were about to commit crimes.

The case also raised the question of whether Bemba took necessary and reasonable measures to prevent or even repress said crimes. Command responsibility does not mean that a commander is automatically responsible for every crime committed by subordinates. Instead, the Court must examine what measures were available and whether those measures were sufficient under the circumstances. This makes the commander's actual authority, knowledge, and response particularly important.

The Defence could argue that Mr. Bemba did not possess the necessary level of effective control over the troops in the Central African Republic, that he lacked sufficient knowledge of the crimes, or that he took reasonable measures within his power to prevent or punish them. The Defence could also challenge whether the Prosecution had established each element of Article 28(a) beyond reasonable doubt.

9. PRE-CONFERENCE PREPARATION

Roles of the Members of the Court:

1. **The Presidency** - The Presidency is supposed to direct and supervise the Court's work. They serve the role of the Chairs just like the ones of other committees. The difference is that they technically are also the presiding judges, meaning that they are entitled to answer any question that may arise during the proceedings.
2. **The Prosecution** - The Prosecutors must convince the judges that the Accused is responsible for the crimes they are charged with. Their responsibility is the burden of proof rests with, meaning that they are the ones on whom the responsibility of demonstration and proving the guilt beyond any reasonable doubt lies.
3. **The Defence** - The Defense (Advocates) is tasked with representing the accused, taking complete responsibility for any documents submitted to the court on behalf of the defendant. Their role is to advocate for their client's interests and protect their rights. Delegates assigned to this position must either establish innocence or create reasonable doubt in the Judges' minds.
4. **The Judges** - The Judges' role is to determine the truth. Their decisions are strictly based on their morals and knowledge, all this while being objective. They shall have profound knowledge of the case and during the trial listen carefully and ask questions. Judges should be unbiased but must remain open to the opinions of other judges. They must be especially well familiarised with all relevant articles of the Statute concerning the process of formulating the Judgement, as they will serve as the basis for their arguments.

5. Witnesses - the role of witness may be taken by conference participants, including (but not limited to): delegates, chairpersons (excluding the International Criminal Court Presidency), and secretariat members. Both conflicting parties have a right to call their selected witnesses during the cross-examination of witnesses. Witnesses can include (but are not limited to) victims, the defendant, alleged co-perpetrators, legal advisors, and relevant scientists. Each witness must be introduced with a brief description of their role and how it relates to the case.

Memorials:

Both conflicting parties (Defense and Prosecution) must prepare a shared Memorial outlining their fundamental line of argument concerning the case. The Memorial submitted by the Prosecution will be considered a document containing charges. The Defense's Memorial, however, is encouraged to be formulated in a manner responding to the Prosecutor's statements.

It is important to notice that each document submitted in front of the Court must follow certain requirements, such as correct formatting. This is crucial in terms of the first page of the Memorial and later documents (including Opinion Letter), which has a very specific look as seen below.

Cour
Pénale
Internationale

International
Criminal
Court



Original: English

No. ICC-XX/YY-ZZ/YY-QQ

Date: DD.MM.YYYY

TRIAL CHAMBER X

Before:

Presiding Judge First name Last name (of the chair)

Presiding Judge First name Last name (of the chair)

Judge I First name Last name

Judge II First name Last name

Judge III First name Last name

Judge IV First name Last name

Judge V First name Last name

***THE SITUATION IN NAME OF PLACE, IN THE CASE OF
THE PROSECUTOR V. FULL NAME OF THE ACCUSED***

type of document

Prosecution/Advocates: Names of the Members of the Party

Here are listed all required elements that the documents must have to be admissible in front of the Court:

- a) The Standard ICC logo at the top, it can be found on the official ICC website;
- b) In the top right corner of each document, the document number associated with the case, with the general template being:

ICC-XX/YY-ZZ/QQ-NNNN

- ICC - always standing for International Criminal Court
- XX - situation number
- YY - country/situation code
- ZZ - case number within the situation
- QQ - year the case was opened
- NNNN - the document number, the sequential filling ID

- c) The original language of the document in bold, on the left hand side;
- d) Date and document number on the right hand side;
- e) "Trial Chamber X" centered, capitalized and in bold, with X being the number of the Trial Chamber;
- f) A list of all the judges, along with Presiding Judges being labeled, justified and in bold following the word "Before:";
- g) The geographical and contextual focus of the prosecution being capitalized, centered and stated as "SITUATION IN...", followed by the formal name of the criminal proceeding "IN THE CASE OF THE PROSECUTOR V...";
- h) A boxed frame stating the type of the document;
- i) In case of Memorials of the Prosecution or Defence, names of each member of the party must be listed below the box;
- j) The number of the document, the page number and date being in the footnote on each page;

Here are listed all required elements that the documents must have to be admissible in front of the Court:

- a) The Standard ICC logo at the top, it can be found on the official ICC website;

After the first page is formatted, the Counsel may move on to the actual content of the Memorial. Usually, it includes a Table of Contents and has around 10 pages (preferably 7-15). This work should be divided upon each party evenly.

Memorial of Prosecution should consist of:

- Introduction
- Background information - should be characterizing the general situation in the specific place at the time, why this case falls into the jurisdiction of the Court, why it was referred to the ICC. Apart from that, a brief but necessary context must be provided. The role of the defendant must be characterized, along with the impact they had.
- Procedural history of the case
- Information about the Accused - should be brief and done chronologically
- Jurisdiction - Prosecutors should characterize the legal basis from the Rome Statute that underlies the criminal responsibility of the accused. It's the prosecutors' job to prove that a person is criminally responsible, no matter if it was simply by giving orders or by directly participating. Another thing that is crucial, is an explanation as to how the article applies to the unique situation of the defendant.
- Listed charges

Meanwhile, the Memorial of the Defence should include:

- Background information
- Information about the Accused
- Mistake of Facts - very important section as the memorial of the Defense is written in response to the Prosecution; It outlines what you won't be agreeing upon in the case and the main axis of disagreement within the trial.
- Written Arguments - written on the basis of the Rome Statute Articles brought before to prove the charges from the Prosecution. The arguments should explain how the defendant, is in fact, NOT compliant in the crimes for whatever reason the Defense Counsel comes up with and deems logical.

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- Information about the Accused - should be brief and done chronologically
- Jurisdiction - Prosecutors should characterize the legal basis from the Rome Statute that underlies the criminal responsibility of the accused. It's the prosecutors' job to prove that a person is criminally responsible, no matter if it was simply by giving orders or by directly participating. Another thing that is crucial, is an explanation as to how the article applies to the unique situation of the defendant.
- Listed charges

Meanwhile, the Memorial of the Defence should include:

- Background information
- Information about the Accused
- Mistake of Facts - very important section as the memorial of the Defense is written in response to the Prosecution; It outlines what you won't be agreeing upon in the case and the main axis of disagreement within the trial.
- Written Arguments - written on the basis of the Rome Statute Articles brought before to prove the charges from the Prosecution. The arguments should explain how the defendant, is in fact, NOT compliant in the crimes for whatever reason the Defense Counsel comes up with and deems logical.

Opinion Letter:

Compared to the Prosecution and the Defence Memorials, the Judge's Memorial is much more simpler in structure. After reading the memorials of the opposing parties, each judge has to present their own personal opinion in an "Opinion Letter" regarding the case. It should show how you interpret the case, what aspects you believe are crucial, where you think each side has flaws in reasoning and any other matters you consider relevant.

List of Evidence and Witnesses:

The list of evidence as well as the list of witnesses must be provided by the Prosecution and the Defence in separate documents along with the Memorial, on a specific date set by the Presidency. Below are listed some recommendations of what can be used as an evidence:

1. **testimonial evidence** - that means witnesses and their testimonies. Witnesses are to be prepared by the party they are testifying for. They can be individuals that have directly observed or taken part in events relevant to the case, witnesses that have special knowledge in a specific field, for instance a history professor or expert who has knowledge about a certain conflict. Witnesses can, but they don't have to, be people existing in real life.
2. **documentary evidence** - which can be a written record or official document that will support one of your claims, for example a letter, contract, or a testimony.
3. **electronic evidence** - that being any digital record, including video and audio recordings, screenshots of e-mails and messages, computer data etc.
4. **physical evidence** - if you feel like bringing any props to the committee, you are welcome to bring any physical items collected at crime scenes or during investigations, those can be weapons, tools, physical notes, or any other objects.

10. QUESTIONS TO CONSIDER

- Did Mr. Bemba have effective command and control over the MLC troops deployed in the Central African Republic?
- Did Mr. Bemba have effective command and control over the MLC forces?
- Was the available information sufficient to establish that Mr. Bemba knew or should have known about the crimes?
- Were the measures that Mr. Bemba took sufficient to satisfy his obligations under Article 28(a)?

- Can a commander be held criminally responsible for the acts of his subordinates, even if he did not have actual knowledge of the crimes?

11. USEFUL LINKS/LINKOGRAPHY

Asser Institute. “ICC – Bemba Case.” Available at:
<https://share.google/SBuzawDquOjDxHHzk>

International Criminal Court. “Trial Judgment in the Case of The Prosecutor v. Jean-Pierre Bemba Gombo.” How does law protect in war? Available at:
<https://share.google/dxXN2qMGBsFLAvYfb>

International Justice Monitor. “Timeline.” Available at:
<https://share.google/tVhNveHGjS40exlel>

International Criminal Court. “Rome Statute of the International Criminal Court.” Available at: <https://www.icc-cpi.int/sites/default/files/Rome-Statute.pdf>

International Criminal Court. “International Criminal Court Procedure.” Available at: <https://www.icc-cpi.int/about/how-the-court-works>